



File No: EXP202306268

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 7, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ELECTRAWORKS - CEUTA, S.A. (hereinafter, the respondent), through the Agreement that is transcribed below:

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File No: PS/00212/2023

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 12, 2019, A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against ELECTRAWORKS - CEUTA, S.A. with NIF A67870402 (hereinafter, the respondent).

The reasons for the complaint are as follows:

The claimant contacted the person responsible for the BWIN website to request the deletion of their personal data. However, they only managed to unsubscribe from commercial communications. After insisting, their request was rejected again, stating that the data must be retained for 10 years, and they were urged to resubmit the request after that period.

In the privacy policy of said portal, the responsible entity is identified as ELECTRAWORKS PLC, with its main establishment in Malta.

Date on which the reported facts took place: the claimant made the first request for the deletion of their data on November 22, 2017. On March 27, 2019, the claimant was informed that their data must be retained for 10 years, and they could request its deletion after that time.

Relevant documentation provided by the claimant:

- Printout of an email dated 11/22/2017 sent by the claimant to Soporte.es@bwin.es. In this email, the claimant responds to another email in which they are informed of the steps to follow to close the account, indicating that "I have already done that. I want you to delete my data from your database. Delete my account."

- Printout of an email dated 03/27/2019 sent by the claimant to soporte.es@bwin.es. In this email, the claimant states that "A year and a half ago, I asked you to deactivate my account and delete my data from your Database. You have been violating the Data Protection Law for a year and a half and continue to send me advertisements and communications both to my email and to my mobile."

- Printout of an email dated 03/27/2019 sent by soporte.es@bwin.es in which the claimant is informed, among other things, of the following:

"We inform you that we have deactivated the notifications from your account and you will not receive any more communications from now on.

Regardless of this configuration, some types of communications will always be sent when necessary or will always be activated in your account (for example, emails related to resetting your password or betting notifications via SMS)."

...

"The personal data stored in our database may be deleted upon request once the minimum legal guarantee period of 10 years stipulated in our licensing requirements has elapsed, after you have closed your account.

It is not possible to delete your data before this period expires, as this information must be available for your security in case it is required in cases of enforceability, exercise, or defense of legal claims by authorities or courts.

Your personal data will not be used for other purposes."

- Printout of an email dated 03/27/2019 sent, in response to the previous email, by the claimant to soporte.es@bwin.es. In this email, the claimant states the following:

"I did not ask you to stop sending me communications. I asked for the cancellation of my data. And not now, but a year and a half ago.

The current data protection law is 3/2018, which transposes the European Regulation 2016/679. This law states that revoking consent for the processing of my personal data must be as easy as giving it. And the data controller must delete it without undue delay."

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If you continue to put obstacles in my way, I will contact the Data Protection Agency. And the penalties are no trivial matter."

- Printout of an email dated 27/03/2019 sent from soporte.es@bwin.es in which the claimant is informed, among other things, of the following information:

"We inform you that if you close your account, the personal data stored in our database may be deleted upon request once the minimum legal warranty period of 10 years stipulated in our licensing requirements has elapsed.

It is not possible to delete your data before this period expires, as this information must be available for your security in case it is required in instances of non-performance, exercise, or defense of legal claims by authorities or courts."

- Printout of an email dated 27/03/2019 sent, in response to the previous email, by the claimant to soporte.es@bwin.es. In this email, the claimant states the following: "You are very misinformed. I request that you delete my data and you must block it, making it only accessible to authorities and deleting it once the statute of limitations period has passed. I should not have to request that my data be deleted again in 10 years."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on April 26, 2021, the Spanish Data Protection Agency (hereinafter, AEPD) forwarded this complaint to the personal data protection control authority of Malta because ELECTRAWORKS PLC had its main establishment in Malta, so that it could proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On May 18, 2022, the personal data protection control authority of Malta informed that, at that time, the main establishment of ELECTRAWORKS was in Ceuta (Spain), so the AEPD declares itself the main authority in this case.

THIRD: On June 21, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was accepted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following details:

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On September 29, 2022, a document was submitted to the AEPD on behalf of ELECTRAWORKS in response to the information requests made by this Agency to the defendant, providing, among other things, the following information:

1. Statement that the complainant accepted the "Terms and Conditions and Privacy Policy" on June 6,

2018, and a copy of these terms is provided, which indicates the following regarding the data retention period in its section "8. DATA RETENTION":

"The period during which we may retain data about you will depend on the purposes for which it was collected, whether you have requested the deletion of the data, and whether there is any legal obligation requiring the retention of the data (for example, for regulatory compliance).

We will retain data about you for at least as long as necessary to fulfill the purposes for which the data was collected. In cases where we process your personal information for marketing purposes or with your consent, we will process the personal information until you ask us to stop doing so and for a short period of time thereafter (to allow us to implement your request). We also keep a record of the fact that you have asked us not to send you direct marketing or to process your personal information indefinitely, so that we can respect that request in the future.

In cases where we process your personal information to comply with our legal obligations, we will do so in accordance with any retention period specified by the applicable law."

2. Statement that "In the privacy policy accepted by the user and in the version currently available on the website, the criteria on which Bwin bases its retention of personal data provided by the user are established, as recommended in the report on adaptation privacy policies issued by the AEPD. It should be noted that the gaming sector is heavily regulated, and we are subject to very strict periods set by legal obligations dependent on the Ministry of Finance and Public Function and the General Directorate of Gaming Regulation, which is under the Ministry of Consumer Affairs. Furthermore, we have an internal procedure to respond to any claims or requests for data deletion, and these are strongly subject to our data retention policy." They provide an excerpt of that data retention policy, which includes a list of retention periods for Spain, highlighting that the default retention period for the category "Money Laundering" is 10 years.

3. Statement that an "excerpt of the internal procedure for the exercise of deletion and the table of periods for Spain (10 years) that was communicated to the user on March 27, 2019 is attached to the document. Therefore, we understand that Bwin complied with the principles of transparency and information."

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4. Within the copy of the "Terms and Conditions and Privacy Policy" provided, in its section "10. WHO TO CONTACT," the following is indicated:

"ElectraWorks (Malta) Plc is registered with the Office of the Information and Data Protection Commissioner of Malta, and you can access its website here.

If you have any inquiries or wish to exercise any of your rights, please contact us at privacy@bwin.es.

If your country has a data protection authority, you have the right to contact it to inquire about any doubts or issues. If we cannot resolve your doubts or questions, you also have the right to seek a remedy before a national court."

5. Statement that "the first time the claimant contacted us was in 2017 when the GDPR had not yet come into effect, so since 2017 and the subsequent interactions with the user, the procedure has varied considerably. In fact, in conversations held with the user in 2019, it was mentioned that they had to contact us to request the deletion of the data once the period had ended, but that is obviously not correct, as we have a procedure to proceed with the deletion of data without needing the collaboration of the users."

And a screenshot of an information system is provided, indicating that it is the system that collects data deletion requests.

This screen shows the data of a request made by the claimant on 22/11/2017, among which is included as "Last Transaction Date" the 01/10/2017, as "Account Closure Date" the 11/01/2022, and as "Retention Period End Date" the 01/10/2027.

And they declare that "The claimant registered on August 1, 2017, but the computation of the term according to the relevant legal obligations cannot begin to be computed until the date of the last

transaction made by the claimant. Therefore, the definitive suspension of the data is scheduled for October 1, 2027. Considering that the last transaction was made on October 1, 2017."

6. Statement regarding the users who had access to the claimant's data after processing their request, that "Once the account is closed and terminated, the data is restricted only to the teams that would only need access for the limited cases of access to comply with our legal obligations. For example, the account information will no longer be included in our marketing database or form part of the monthly responsible gaming reports or profiling databases. Therefore, the information is now quite restricted."

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On April 25, 2023, the historical content of the privacy policy of the BWIN website ("<https://help.bwin.es/es/general-information/security/privacy-policy>") was obtained through a search conducted on the website <https://web.archive.org>, yielding the following results:

7. The content of this previous privacy policy, closest to the date when the first request for deletion of their data was submitted, dated May 17, 2017, contains the following information in the section "18. DELETION OF PERSONAL DATA":

"You may request at any time that we rectify any incorrect personal data we have about you by writing to us at ElectraWorks (Spain) Plc, i.e. Parklane Building, Level 1, Suite 2, Triq Joe Sciberras, Hamrun, Malta. You may also request the cancellation of your personal data, provided that we are not obliged to retain such data as stipulated in the Gaming Law 13/2011 and the regulations that develop it, including the regulation on Licenses and Obligations of Operators regarding the retention of data for a period of six (6) years, in relation to all registered user data and gaming account movements."

8. The content of this subsequent privacy policy, closest to the date when the claimant again requested the deletion of their data and received a response, is dated March 9, 2019, and contains in its sections "8. RETENTION OF PERSONAL INFORMATION" and "10. WHO TO CONTACT" the same content that was in the privacy policy presented as an annex to the document submitted on September 29, 2022, to the AEPD on behalf of ELECTRAWORKS.

LEGAL GROUNDS

I

In accordance with the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of individuals with regard to the processing of personal data and the free movement of such data (GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 and 68.2 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, stating the following:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

a) the identity and contact details of the controller and, where applicable, of their representative;

- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of them or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which the data were collected, it shall provide the data subject prior to that further processing with information on that other purpose and any relevant further information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.”

III

In the present sanctioning procedure, the complainant addressed the controller of the BWIN website to request the deletion of their personal data, but only succeeded in being unsubscribed from commercial communications.

After insisting, they were again denied their request, stating that the data must be retained for 10 years, and they are urged to resubmit the request after that period.

According to the facts presented, this Agency has been able to ascertain that the first request for deletion of their data made by the complainant was on November 22, 2017, and on March 27, 2019. Regarding the privacy policy, it should be noted that the one established in 2017 and 2019 is the one that remained in effect at the time the respondent attached it to their response on September 29, 2022.

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Specifically, on page 44 of the general provisions of the privacy policy, submitted by the defendant, clause 8 establishes the criteria for the retention of personal data as follows:

“8. RETENTION OF PERSONAL INFORMATION

The period during which we may retain data about you will depend on the purposes for which it was

collected, whether you have requested the deletion of the data, and whether there is any legal obligation requiring the retention of the data (for example, for regulatory compliance).

We will retain data about you for at least the time necessary to fulfill the purposes for which the data was collected.

In cases where we process your personal information for marketing purposes or with your consent, we will process the personal information until you ask us to stop doing so and for a short period of time thereafter (to allow us to implement your request).

We also keep a record of the fact that you have requested that we do not send you direct marketing or that we do not process your personal information indefinitely, so that we can respect that request in the future.

In cases where we process your personal information to comply with our legal obligations, we will do so in accordance with any retention period specified by the applicable law."

In the responses given to the claimant on March 27, 2019, they are informed about the retention period of their personal data as follows:

"The personal data that we store in our database may be deleted upon request once the minimum legal warranty period of 10 years stipulated in our licensing requirements has elapsed, after you have closed your account. It is not possible to delete your data before this period expires, as this information must be available for your security in case it is required in situations of enforceability, exercise, or defense of legal claims by authorities or courts. Your personal data will not be used for other purposes."

The responding party states that the claimant's personal data will be automatically deleted when the end date of the retention period ("Retention Period End Date") is reached.

Therefore, it is considered that we are facing a violation of Article 13 of the GDPR, indicated in legal basis II, classified as minor under Article 74.a) for the purposes of prescription, because none of its privacy policies, including the current one, adequately inform about the aspects of Article 13.2.a), that is, the retention period of their personal data.

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This is so because the data must be retained to comply with an obligation imposed by anti-money laundering law, but the data subjects are not informed of the timeframes or the criteria.

The following generic formula is used: "In cases where we process your personal information to comply with our legal obligations, we will do so in accordance with any retention period specified by the applicable law."

In this regard, the Article 29 Working Party Guidelines on Transparency under Regulation (EU) 2016/679 states that:

"The retention period (or the criteria for determining it) may be dictated by factors such as mandatory requirements or industry guidelines, but it must be formulated in such a way that the data subject can assess, based on their own situation, what the retention period will be for specific data/purposes. It is not sufficient for the data controller to indicate, in generic terms, that personal data will be retained for as long as necessary for the legitimate purposes of processing. Where appropriate, different retention periods should be stipulated for different categories of personal data or different processing purposes, and, where applicable, archiving periods as well."

Therefore, the information provided about the retention period by the defendant is considered insufficient, as they could at least inform about the law that imposes the duty of retention so that data subjects can know the period during which their data will be retained.

IV

In accordance with the indications available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, the described facts would constitute a violation of the provisions of Article 13 of the GDPR, classified in Article 83.5 of the

same legal text, which states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of data subjects under Articles 12 to 22; [...]

For the purposes of the statute of limitations for the violations, the violation indicated in the previous paragraph is considered minor and prescribes after one year, in accordance with Article 74 a) of the LOPDGDD, which establishes that:

“Other minor violations of a merely formal nature of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 shall be considered minor and shall prescribe after one year, particularly the following:

a) The failure to comply with the principle of transparency of information or the right of

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information of the affected party for failing to provide all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

V

Article 58.2 of the GDPR provides as follows: “Each supervisory authority shall have all of the following corrective powers indicated below:

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case; According to Article 83.2 of the GDPR, the measure provided for in Article 58.2 i) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

VI

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

Therefore, it is appropriate to calibrate the sanction to be imposed in accordance with the criteria established in Article 83.2 of the GDPR, and with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

Article 83.2 of the GDPR states that:

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

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c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved pursuant to Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In the present case, without prejudice to the outcome of the investigation, the clear intentionality of the complained entity in committing the acts subject to this sanctioning procedure has been taken into account as an aggravating factor, according to Article 83.2 b) of the GDPR, namely, violating Article 13.2 a) of the GDPR, by failing to inform about the retention period of the personal data of the complaining party in a generic manner, without even indicating the law that imposes the duty of retention so that the data subjects can know the period during which their data will be retained. Additionally, another aggravating factor to consider according to Article 76 of the LOPDGDD is the connection of the complained entity with the processing of personal data.

For all these reasons, it is considered that the sanction that should be imposed would be 10,000 euros.

VII

If the infringement is confirmed, it may be agreed to impose on the controller the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, according to the provisions of Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the opening of an additional sanctioning administrative procedure.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of sanctions,

By the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ELECTRAWORKS - CEUTA, S.A., with NIF A67870402, for the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of the aforementioned regulation.

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SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of the present sanctioning

procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 10,000 euros.

FIFTH: TO NOTIFY this agreement to ELECTRAWORKS - CEUTA, S.A., with NIF A67870402, granting a hearing period of ten working days for it to submit allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction that may be imposed in the present procedure. With the application of this reduction, the sanction would be set at 8,000 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of the present procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 8,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 6,000 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

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In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (8,000 euros or 6,000 euros), it must make the payment by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Furthermore, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí
Director of the Spanish Agency for Data Protection

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SECOND: On June 24, 2023, the respondent has proceeded to pay the sanction in the amount of

6,000 euros, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the imposition of the latter has been justified as inappropriate, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202306268, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to ELECTRAWORKS - CEUTA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article

46.1 of the aforementioned Law.

936-040822

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